



CHAPTER 45.

An Act to remove doubts as to the extent of the powers which may be exercised by His Majesty under the Emergency Powers (Defence) Act, 1939. [1st August 1940.]

WHEREAS by the Emergency Powers (Defence) Act, 1939, His Majesty was enabled to exercise certain powers for the purpose of meeting the emergency existing at the date of the passing of that Act, but the said powers did not enable provision to be made for the trial by courts martial of persons not being subject to the Naval Discipline Act, to military law, or to the Air Force Act :

And whereas by reason of the development of hostilities since that date it has become expedient to remove doubts as to the extent of the said powers in order to secure that provision for the trial of such persons by special courts may be made where necessary :

Now, therefore, be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) It is hereby declared that the powers conferred on His Majesty by the Emergency Powers (Defence) Act, 1939 (hereinafter referred to as "the principal Act") to make by Order in Council such Defence Regulations as appear to him to be necessary

Power to provide for trial of offences by special

courts in
certain
areas.
2 & 3 Geo. 6.
c. 62.

or expedient for securing the public safety, the defence of the realm, the maintenance of public order, and the efficient prosecution of any war in which His Majesty may be engaged, include power to make provision for securing that, where by reason of recent or immediately apprehended enemy action the military situation is such as to require that criminal justice should be administered more speedily than would be practicable by the ordinary courts, persons, whether or not subject to the Naval Discipline Act, to military law, or to the Air Force Act, may, in such circumstances as may be provided by the Regulations, be tried by such special courts, not being courts martial, as may be so provided.

(2) After paragraph (a) of subsection (2) of section one of the principal Act there shall be inserted the following paragraph—

“(aa) make provision for the apprehension and punishment of offenders and for their trial by such courts, not being courts martial, and in accordance with such procedure as may be provided for by the Regulations, and for the proceedings of such courts being subject to such review as may be so provided for, so, however, that provision shall be made for such proceedings being reviewed by not less than three persons who hold or have held high judicial office, in all cases in which sentence of death is passed, and in such other circumstances as may be provided by the Regulations;”

and in the said paragraph (a) the words “for the “ apprehension trial and punishment of persons offending “ against the Regulations and ” are hereby repealed.

Short title
and citation.

2. This Act may be cited as the Emergency Powers (Defence) (No. 2) Act, 1940, and shall be included among the Acts which may be cited together as the Emergency Powers (Defence) Acts, 1939 and 1940.

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